

## **DOCUMENT TITLE: Section 154, Code of Criminal Procedure, 1973 (FIR Registration & Lalita Kumari Ruling)**

**COURT:** Supreme Court of India / Parliament of India

**CITATION:** Central Act No. 2 of 1974, Section 154 and (2014) 2 SCC 1 (Lalita Kumari v. Govt. of U.P.)

**BENCH:** 5-Judge Constitution Bench (P. Sathasivam, C.J., B.S. Chauhan, Ranjana P. Desai, Ranjan Gogoi, S.A. Bobde, JJ.)

**DATE OF JUDGMENT:** 2013-11-12

**DOCUMENT TYPE:** statute

### **[Section 154(1): Mandatory Registration of First Information Report (FIR)]**

Every information relating to the commission of a cognizable offence (such as theft of a ring, robbery, assault, cheating, or burglary), if given orally to an officer in charge of a police station, shall be reduced to writing by him or under his direction, and be read over to the informant; and every such information, whether given in writing or reduced to writing as aforesaid, shall be signed by the person giving it, and the substance thereof shall be entered in a book to be kept by such officer in such form as the State Government may prescribe in this behalf.

A copy of the information as recorded under sub-section (1) shall be given forthwith, free of cost, to the informant.

### **[Lalita Kumari Landmark Directives on FIR Registration]**

In *Lalita Kumari v. Govt. of U.P.* (2014) 2 SCC 1, the 5-Judge Constitution Bench of the Supreme Court held:

1. Registration of FIR is mandatory under Section 154 of the Code if the information discloses commission of a cognizable offence and no preliminary inquiry is permissible in such a situation.
2. If the information received does not disclose a cognizable offence but indicates the necessity for an inquiry, a preliminary inquiry may be conducted only to ascertain whether cognizable offence is disclosed or not.
3. Cases involving theft of personal property, stolen rings, gold, vehicles, or physical robbery unequivocally disclose a cognizable offence; police officers cannot refuse to register an FIR on the grounds of lack of jurisdiction or delay.
4. Concept of Zero FIR: A victim or informant can approach any police station to lodge an FIR (Zero FIR) irrespective of where the theft occurred. The police station must record the FIR, assign a serial number zero, and immediately transfer the case to the jurisdictional police station for investigation.

### **[Section 154(3): Remedy when Police Refuse to Register FIR]**

Any person aggrieved by a refusal on the part of an officer in charge of a police station to record the information referred to in sub-section (1) may send the substance of such information, in writing and by post, to the Superintendent of Police concerned who, if satisfied that such information discloses the commission of a cognizable offence, shall either investigate the case himself or direct an investigation to be made by any police officer subordinate to him.

**[Section 173, Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS Reform on FIR & e-FIR)]**

Section 173 of BNSS 2023 replaces Section 154 CrPC, formalizing electronic FIRs (e-FIRs) and Zero FIR:

Sub-section (1) permits every information relating to a cognizable offence to be given orally or by electronic communication (e-FIR), irrespective of the area where the crime was committed. Where information is given electronically, it shall be taken on record upon being signed within three days by the person giving it.